

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
SHAMIK LEWIS,

Plaintiff,

Plaintiff designates
Kings County as
the place of trial.

-against-

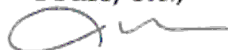
S U M M O N STHE CITY OF NEW YORK, DET. JOHN
ZEBASKI, DET. JOHN AVALDOS,
P. O. "JOHN DOE I" and P. O. "JOHN DOE II",Basis of venue is the
County where tort
arose.Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action to serve a copy of your answer, or if the complaint is not served with this Summons, to serve notice of appearance, on the plaintiff's attorney within twenty (20) days after the service of this Summons, (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Bronx, New York
August 16, 2021

Yours, etc.,



MICHAEL T. RIDGE, ESQ.

Attorney for Plaintiff

910 Grand Concourse, Suite 1D
Bronx, New York 10451
(718) 590-5400DEFENDANTS' ADDRESSES:

GEORGIA M. PESTANA, ESQ.

Acting Corporation Counsel

Attorney for Defendant

100 Church Street

New York, New York 10007

DETECTIVE JOHN ZEBASKI
c/o The New York City Police Department
71st Precinct
421 Empire Boulevard
Brooklyn, New York 11225

DETECTIVE JOHN AVALDOS
c/o The New York City Police Department
71st Precinct
421 Empire Boulevard
Brooklyn, New York 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
SHAMIK LEWIS,

Plaintiff,

-against-

VERIFIED COMPLAINTTHE CITY OF NEW YORK, DET. JOHN
ZEBASKI, DET. JOHN AVALDOS,
P. O. "JOHN DOE I" and P. O. "JOHN DOE II",Defendants.
-----X

Plaintiff, SHAMIK LEWIS, by his attorney, MICHAEL T. RIDGE, ESQ.,
respectfully allege as follows:

1. That the cause of action herein complained of arose in the County of Kings, City and State of New York.
2. At all times mentioned, the defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. That heretofore and on July 20, 2020, plaintiff's Notice of Claim and Intention to Sue was duly served upon and filed with THE CITY OF NEW YORK.
4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are

based.

5. That a statutory hearing is scheduled for October 5, 2021.

6. Upon information and belief, at all times mentioned, the defendants, DET. JOHN ZEBASKI, DET. JOHN AVALDOS, P. O. "JOHN DOE I" and P. O. "JOHN DOE II", were and are police officers of the defendant, THE CITY OF NEW YORK, and at all times herein were acting in such capacity, through the course of their employment, as agents, servants and employees of the defendant, THE CITY OF NEW YORK.

**AS AND FOR A FIRST CAUSE OF ACTION
IN FAVOR OF SHAMIK LEWIS ON THE
BASIS OF ASSAULT AND BATTERY**

7. The Plaintiff, SHAMIK LEWIS, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "6" with full force and effect as though set forth at length herein.

8. On or about June 3, 2020, at time yet unknown, the defendants, DET. JOHN ZEBASKI, DET. JOHN AVALDOS, P. O. "JOHN DOE I" and P. O. "JOHN DOE II", intentionally placed the plaintiff in apprehension of imminent harmful and/or offensive contact at Nostrand Avenue and Eastern Parkway, and continued to do so at the 71st Police Precinct and Central Booking, and in the Courts of the County of the Kings, City and State of New York.

9. On or about June 3, 2020, at a time yet unknown, the defendants, DET. JOHN ZEBASKI, DET. JOHN AVALDOS, P. O. "JOHN DOE I" and P. O. "JOHN DOE II", intentionally made harmful and/or offensive contact with the

plaintiff's person at Nostrand Avenue and Eastern Parkway and continued to do so at the 71st Police Precinct in the County of the Kings, City and State of New York.

10. Said harmful and/or offensive contact made by the defendants, DET. JOHN ZEBASKI, DET. JOHN AVALDOS, P. O. "JOHN DOE I" and P. O. "JOHN DOE II", was done with excessive force and was made without the plaintiff's, SHAMIK LEWIS, consent.

**AS AND FOR A THIRD CAUSE OF ACTION IN FAVOR
OF SHAMIK LEWIS ON THE BASIS OF A VIOLATION
OF THE PLAINTIFF'S CONSTITUTIONAL CIVIL RIGHTS
PURSUANT TO 42 UNITED STATES CODE, SECTION 1983.**

11. The plaintiff, SHAMIK LEWIS, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "10" with full force and effect as though set forth at length herein.

12. The defendants DET. JOHN ZEBASKI, DET. JOHN AVALDOS, P. O. "JOHN DOE I" and P. O. "JOHN DOE II", were at all times relevant, duly appointed and acting as officers of the City of New York Police Department.

13. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

14. The defendant, THE CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.

15. On or about June 3, 2020, the defendants, armed police, while

effectuating the seizure of the plaintiff, **SHAMIK LEWIS**, did search, seize, assault and commit a battery and grab the person of the plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the plaintiff during the arrest process in an unlawful and excessive manner. The plaintiff was falsely arrested without the defendants possessing probable cause to do so; also, he had to seek medical attention as a result of the excessive force used by defendants herein against his person.

16. The above action of the defendants resulted in the plaintiff, **SHAMIK LEWIS**, being deprived of the following rights under the United States Constitution:

- a. Freedom from summary punishment; and
- b. Freedom from cruel and inhuman punishment; and
- c. Freedom from illegal search and seizure; and
- d. Freedom from false arrest; and
- e. Freedom from the use of excessive force during the arrest process.

17. The defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

18. The direct and proximate result of the defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature.

He was forced to endure pain and suffering, all to his detriment.

**AS AND FOR A FOURTH CAUSE OF
ACTION IN FAVOR OF SHAMIK LEWIS
ON THE BASIS OF NEGLIGENT TRAINING**

19. The plaintiff, **SHAMIK LEWIS**, incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.

20. The defendant, **THE CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and a search warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

21. The defendant, **THE CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

22. **THE CITY OF NEW YORK** is negligent due to its failure to implement a

policy with its Police Department or actively enforce the law, if any of the following are lacking:

a. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.

b. Force cannot be used against an individual who does not physically resist arrest.

c. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

23. The foregoing acts, omissions and systemic failures are customs and policies of the defendant, **THE CITY OF NEW YORK**, which caused the police officers to falsely arrest, seize illegally and search the Plaintiff, commit an assault/battery to her person and deny him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR A FIFTH CAUSE OF ACTION
IN FAVOR OF SHAMIK LEWIS ON
THE BASIS OF NEGLIGENT SUPERVISION**

24. The plaintiff, **SHAMIK LEWIS**, repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "23" as if set forth at length herein.

25. The defendant, **THE CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the defendant, **THE CITY OF NEW YORK**,

knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the defendant, **THE CITY OF NEW YORK**, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

26. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

27. The Defendant, **THE CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of

the Police Officer defendants, **THE CITY OF NEW YORK**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

28. That by reason of the aforesaid unlawful arrest, the plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

**AS AND FOR A SIXTH CAUSE OF ACTION
IN FAVOR OF SHAMIK LEWIS ON THE
BASIS OF FEDERAL/CONSTITUTIONAL CLAIMS**

29. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "28" as it set forth at length herein.

30. Defendants **DET. JOHN ZEBASKI**, **DET. JOHN AVALDOS**, **P. O. "JOHN DOE I"** and **P. O. "JOHN DOE II"**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

31. At all times mentioned herein, said police officers were acting under

color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

32. The plaintiff, **SHAMIK LEWIS**, is and at all times relevant herein, a citizen of the United States and a resident of Kings County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

33. The defendant **THE CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

34. On or about June 3, 2020, the defendants, armed police, while effectuating the seizure of the plaintiff, **SHAMIK LEWIS**, did search, seize, assault and commit a battery and grab the person of the plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the plaintiff during the arrest process in an unlawful and excessive manner. The plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the defendants possessing probable cause to do so.

35. The above action of the defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;

f. Freedom from the use of excessive force during the arrest process;

g. Freedom from unlawful imprisonment.

36. The defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the Fourth and Fourteenth amendments of the United States Constitution.

37. The direct and proximate result of the defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.

**AS AND FOR A SEVENTH CAUSE OF ACTION
IN FAVOR OF SHAMIK LEWIS**

38. The plaintiff, **SHAMIK LEWIS**, repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "37" as if set forth at length herein.

39. The defendant, **THE CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer defendants, the defendant, **THE CITY OF NEW YORK**, knew or should have known of the bad disposition of said defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not

suitable to be hired and employed by the defendant, **THE CITY OF NEW YORK**, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

40. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

41. The defendant, **THE CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer defendants, **THE CITY OF NEW YORK**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning

their bad disposition and the fact that these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

42. That by reason of the aforesaid unlawful arrest, the plaintiff was deprived of liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in the plaintiff's character and reputation, was prevented from attending the plaintiff's usual business and avocation, was injured in the Plaintiff's reputation in the community and the said plaintiff has been otherwise damaged.

**AS AND FOR AN EIGHTH CAUSE OF
ACTION IN FAVOR OF SHAMIK LEWIS**

43. The plaintiff, **SHAMIK LEWIS**, repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "42" as if set forth at length herein.

44. The defendant, **THE CITY OF NEW YORK**, intentionally and maliciously initiated, and actively continued, a criminal judicial proceeding against the plaintiff, **SHAMIK LEWIS**, without probable cause.

45. That the above mentioned criminal judicial proceeding commenced by the defendant against the plaintiff, terminated in favor of the plaintiff,

SHAMIK LEWIS.

WHEREFORE, the plaintiff, **SHAMIK LEWIS**, demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages and attorney fees pursuant to 42 USC Section 1988.

Dated: Bronx, New York
August 16, 2021

Yours, etc.,



MICHAEL T. RIDGE, ESQ.
Attorney for Plaintiff
910 Grand Concourse, Suite 1D
Bronx, New York 10451
(718) 590-5400

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.:

SHAMIK LEWIS,

Plaintiff,

- against -

**THE CITY OF NEW YORK, DET. JOHN
ZEBASKI, DET. JOHN AVALDOS,
P. O. "JOHN DOE I" and P. O. "JOHN DOE II",**

Defendants.

SUMMONS AND COMPLAINT


MICHAEL T. RIDGE, ESQ.
Attorney for Plaintiff(s)
910 Grand Concourse Suite 1D
Bronx, New York 10451
(718) 590-5400

Dated: Bronx, New York
August 16, 2021

To: *As addressed on attached document.*

PLEASE TAKE NOTICE:

Notice of Entry

☐ that the within is a (*certified*) true copy of a duly entered in the office of the clerk of the within named Court on (*dated*)_____.

Notice of Settlement

☐ that the within order will be presented for settlement to the HON. _____ one of the judges of the within named Court, at (*addr*)_____ on (*dated*)_____.